

Executive Summary

Prison Statistics India–2023

Executive Summary

Prisons – Types & Occupancy

Year	No. of Prisons	Actual Capacity of Prisons	No. of Prisoners at the end of the year	Occupancy Rate at the end of the year
2021	1,319	4,25,609	5,54,034	130.2%
2022	1,330	4,36,266	5,73,220	131.4%
2023	1,332	4,39,119	5,30,333	120.8%

- As per data provided by States/UTs.

Note: Figures as on 31st December of the respective year

1. The total number of prisons at national level has increased from 1,330 in 2022 to 1,332 in 2023 having increased by 0.2%.
2. The 1,332 prisons in the country consist of 549 Sub Jails, 436 District Jails, 152 Central Jails, 101 Open Jails, 47 Special Jails, 35 Women Jails, 10 Borstal Schools and 2 Other than the above Jails.
3. The highest number of jails was reported in Rajasthan (155) followed by Tamil Nadu (142), Madhya Pradesh (132), Andhra Pradesh (106), Odisha (92) and Uttar Pradesh (77). These Six (6) States together cover 52.9% of total jails in the country as on 31st December, 2023.
4. Delhi has reported the highest number of Central jails (14) in the country. States/UTs like Arunachal Pradesh, Meghalaya, A & N Islands, DNH & Daman Diu, Ladakh and Lakshadweep have no central jail as on 31st December, 2023.
5. Uttar Pradesh has reported the highest number of District jails (64). States/UTs like Goa, Chandigarh, DNH & Daman Diu, Delhi, Lakshadweep and Puducherry have no District Jail as on 31st December, 2023.
6. Tamil Nadu has reported highest number of Sub-jails (104). States/UTs like Arunachal Pradesh, Goa, Haryana, Maharashtra, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Chandigarh, Delhi and Ladakh have no sub-jail in their States/UTs, as on 31st December, 2023.
7. Only 16 States/UTs were having Women Jails (35 Women Jails) with a total capacity of 7,086 in India. These States/UTs (Number of Jails) (Capacity) are

- Rajasthan (7) (998), Tamil Nadu (5) (2018), Kerala (3) (211), Andhra Pradesh (2) (280), Bihar (2) (202), Gujarat (2) (410), Punjab (2) (595), Telangana (2) (300), Uttar Pradesh (2) (540), Delhi (2) (680), Karnataka (1) (100), Maharashtra (1) (262), Mizoram (1) (96), Odisha (1) (55), Tripura (1) (25) and West Bengal (1) (314) and the rest of 20 States/UTs have no separate Women Jail as on 31st December, 2023.
8. The actual capacity of prisons has increased from 4,36,266 in 2022 to 4,39,119 in 2023 (as on 31st December of each year), having increased by 0.7%. Number of prisoners lodged in various jails has decreased from 5,73,220 in 2022 to 5,30,333 in 2023 (as on 31st December of each year), having decreased by 7.5% during the period.
 9. Out of the total capacity 4,39,119 in 1,332 prisons in 2023, the Central Jails of the country were having the highest capacity (1,98,150) followed by the District Jails (1,72,074) and the Sub Jails (43,800). Among the other types of jails, Special Jails, Women Jails and Open Jails were having a capacity of 9,065, 7,086 and 7,201 inmates respectively as on 31st December, 2023. The highest number of inmates were lodged in District Jails (2,35,014) followed by Central Jails (2,39,136) and Sub Jails (38,244) as on 31st December, 2023. The number of inmates in Women Jails was 4,293.
 10. Uttar Pradesh has reported the highest capacity in their jails (capacity of 65,866 inmates in 77 jails contributing 15.0% of total capacity) followed by Bihar (capacity of 49,019 inmates in 59 jails contributing 11.2% of total capacity) and Madhya Pradesh (capacity of 29,875 inmates in 132 jails contributing 6.8% of total capacity).
 11. Out of the 5,30,333 prisoners, 5,08,715 were male prisoners, 21,510 were female prisoners and 108 were transgender.
 12. The occupancy rate has decreased from 131.4% in 2022 to 120.8% in 2023 (as on 31st December of each year).
 13. The highest occupancy rate was in District Jails (136.6%) followed by Central Jails (120.7%) and Special Jails (92.3%). The occupancy rate in Women Jails was 60.6% as on 31st December, 2023.
 14. Uttar Pradesh has reported the highest number of prisoners (98,849) in its jails contributing 18.6% followed by Bihar (53,076), Madhya Pradesh (45,543), Maharashtra (40,805), Punjab (31,529) and Haryana (25,833) as on 31st

December, 2023. These States together are contributing around 55.7% of total prisoners in the country.

15. Delhi has reported the highest occupancy rate (200.2%) followed by Meghalaya (188.7%), Uttarakhand (183.1%), Maharashtra (155.3%), Madhya Pradesh (152.4%) and Uttar Pradesh (150.1%) as on 31st December, 2023.
16. The capacity in 35 Women Jails was 7,086 with the actual number of prisoners in these Women Jails was 4,293 (Occupancy Rate: 60.6%) which includes (15) Transgender inmates also as on 31st December, 2023. The capacity of Women Inmates in other types of Jail (i.e. except Women Jails) was 23,593 with the actual number of women inmates in these jails was 17,232 (Occupancy Rate: 73.0%) as on 31st December, 2023.
17. Uttarakhand has reported the highest female occupancy rate (169.6%) followed by Maharashtra (118.5%) and Uttar Pradesh (116.5%). However, the highest number of female inmates were confined in the jails of Uttar Pradesh (3,926) followed by Bihar (2,029) and Madhya Pradesh (1,803).

Prisoners – Types & Demography

Year	No. of Convicts	No. of Undertrial Prisoners	No of Detenues	No. of Other Inmates	Total No. of Prisoners
2021	1,22,852	4,27,165	3,470	547	5,54,034
2022	1,33,415	4,34,302	4,324	1,179	5,73,220
2023	1,35,536	3,89,910	3,916	971	5,30,333

- As per data provided by States/UTs.
- Figures are as on 31st December of each year

1. During the year 2023, a total of 17,24,522 inmates were admitted in various jails of the country and the admission of inmates has decreased by 4.4 % over 2022 (18,04,787 inmates).
2. A total of (5,30,333) prisoners were confined as on 31st December, 2023 in various jails across the country. The number of Convicts, Undertrial inmates and Detenues were reported as 1,35,536, 3,89,910 and 3,916 respectively accounting for 25.6%, 73.5% and 0.7% respectively at the end of 2023. Other prisoners accounted for 0.2% (971 prisoners) of total prisoners.

3. Convicted Prisoners

- a. The number of convicted prisoners has increased from 1,33,415 in 2022 to 1,35,536 in 2023 (as on 31st December of each year), having increased by 1.6% during the period.
- b. Out of total 1,35,536 convicts, the highest number of convicted prisoners were lodged in Central Jails (65.5%, 88,820 convicts) followed by District Jails (27.3%, 37,051 convicts) and Sub Jails (1.8%, 2,452 convicts) as on 31st December, 2023.
- c. Uttar Pradesh has reported the maximum number of convicts (18.6%, 25,146 convicts) in the country followed by Madhya Pradesh (16.5%, 22,383 convicts) and Maharashtra (5.9%, 8,000 convicts) at the end of 2023.
- d. Among the 1,35,536 convicts, 99 were civil convicts.

4. Undertrial Prisoners

- a. The number of undertrial prisoners has decreased from 4,34,302 in 2022 to 3,89,910 in 2023 (as on 31st December of each year), having decreased by 10.2% during this period.
- b. Among the 3,89,910 undertrial prisoners, the highest number of undertrial prisoners was lodged in District Jails (50.5%, 1,97,047 undertrials) followed by Central Jails (37.6%, 1,46,749 undertrials) and Sub Jails (9.1%, 35,625 undertrials) as on 31st December, 2023.
- c. Uttar Pradesh has reported the maximum number of undertrials (18.8%, 73,491 undertrials) in the country followed by Bihar (11.9%, 46,529 undertrials) and Maharashtra (8.3%, 32,438 undertrials) at the end of 2023.
- d. Among the 3,89,910 undertrial prisoners, only 64 were civil inmates.

5. Detenues

- a. The number of detenues has decreased from 4,324 in 2022 to 3,916 in 2023 (as on 31st December of each year), having decreased by 9.4% during this period.
- b. Among the 3,916 detenues, the highest number of detenues were lodged in Central Jails (76.1%, 2,980 detenues) followed by District Jails (18.4%, 719 detenues) and Special Jails (2.6%, 103 detenues) as on 31st December, 2023.

- c. Tamil Nadu has reported the maximum number of detenues (34.6%, 1,354) in the country followed by Jammu & Kashmir (16.1%, 632) and Gujarat (14.4%, 562) at the end of 2023.

6. Women Prisoners with Children

- a. There were 1,318 women prisoners with 1,492 children as on 31st December, 2023.
- b. Among these women prisoners, 1,049 women prisoners were undertrial prisoners who were accompanied by 1,191 children and 249 convicted prisoners who were accompanied by 272 children.

7. Age-group of the Prisoners

- a. As on 31st December, 2023 the maximum number of inmates (2,32,650 inmates, 43.9%) were belonging to the age group 18-30 years followed by the age group 30-50 years (2,30,387 inmates, 43.4%).
- b. 67,289 inmates (12.7%) were belonging to the age group above 50 years.
- c. Only 7 inmates belonged to the age group of 16-18 years.

8. Education

- a. Among the 5,30,333 prisoners, literacy profile of 2,18,199 (41.1%) prisoners was Below Class X, 1,29,321 (24.4%) prisoners were Class X & above but below Graduation, 38,207 (7.2%) prisoners were having a Degree, 10,595 (2.0%) prisoners were Post Graduates and 7,565 (1.4%) prisoners were Technical Degree/Diploma holders.
- b. A total of 1,26,446 (23.8%) prisoners were Illiterate.

9. Domicile of Origin of Prisoners

- a. Among the 5,30,333 prisoners as on 31st December, 2023, around 89.7% (4,75,771 inmates) of prisoners belonged to the State followed by prisoners belonging to the Other States (9.0%, 47,606 inmates) and prisoners belonging to the Other Country (1.3%, 6,956 inmates).
- b. Among the 1,35,536 convicts, 92.6% convicts (1,25,439 inmates) belonged to the State while 6.3% (8,598 inmates) and 1.1% (1,499 inmates) belonged to the Other States and Other Country respectively.

- c. Haryana has reported the most number of other State domicile convicts (14.2%, 1,218 convicts) followed by Uttar Pradesh (10.7%, 924 convicts) and Punjab (8.1%, 693 convicts) as on 31st December, 2023.
- d. Among the 3,89,910 undertrial prisoners, 89.8% (3,46,218 inmates) belonged to the State while 9.9% (38,525 inmates) and 1.3% (5,167 inmates) belonged to the Other States and Other Country respectively.
- e. Uttar Pradesh has reported the highest number of undertrial prisoners of other states (12.2%, 4,699 inmates) followed by Haryana (11.4%, 4,402 inmates) and Maharashtra (11.1%, 4,294 inmates) at the end of 2023.

Foreign Prisoners

Year	No. of Prisoners at the end of the year	No. of Foreign Prisoners	Share of Foreign Prisoners
2021	5,54,034	5,565	1.0%
2022	5,73,220	6,283	1.1%
2023	5,30,333	6,956	1.3%

- As per data provided by States/UTs.
- Note: Figures as on 31st December of the respective year

1. The number of prisoners of foreign nationality (as on 31st December of each year) has increased from 6,283 in 2022 to 6,956 in 2023, having increased by 10.7% during this period.
2. The percentage share of foreign prisoners out of total prisoners has increased from 1.1% in 2022 to 1.3 in 2023 (as on 31st December of each year).
3. Among 6,956 prisoners of foreign nationality at the end of 2023, 5,570 were Males, 1,364 were Females and 22 were Transgenders.
4. Among these foreign national prisoners, 21.5% (1,499 inmates) were Convicts, 74.3% (5,167 inmates) were Undertrials and 0.4% (25 inmates) were Detenues.
5. Among the foreign convicts, the highest number of foreign convicts were from Bangladesh (59.4%, 891 convicts) followed by Nepal (13.3%, 200 convicts), Myanmar (10.4%, 156 convicts), Pakistanis (6.5%, 98 convicts) and Nigerians (3.9%, 58 convicts) at the end of 2023.

6. West Bengal has reported the highest number of foreign convicts lodged in their jails (53.1%, 796) followed by A & N Islands (9.5%, 142) and Himachal Pradesh (4.9%, 74) at the end of 2023.
7. Among the foreign Undertrials, the highest number of foreign undertrials were from Bangladesh (44.2%, 2,283 undertrial) followed by Nigeria (16.8%, 869 undertrial) and Nepal (11.8%, 608 undertrial) at the end of 2023.
8. West Bengal has reported the highest number of foreign undertrial lodged in their jails (29.0%, 1,499) followed by Maharashtra (14.2%, 733) and Delhi (13.6%, 703) at the end of 2023.

Prisoners – Type of Offences

1. Convicts

- a. Among the convicts under IPC crimes (1,16,958) lodged in various jails in the country, around 85.0% of convicts have committed Offences affecting Human Body (99,386 inmates) and around 10.1% of convicts have committed Offences against Property (11,784 inmates) as on 31st December, 2023.
- b. Among the convicts of Offences against Human Body, the highest number of inmates were convicted for Murder (61.9%, 61,564 convicts) followed by convicts of Rape (19.3%, 19,143 convicts) and convicts of Attempt to Murder (6.6%, 6,592 convicts) as on 31st December, 2023.
- c. Among the convicts of Offences against Women, the highest number of inmates were convicted for Rape (76.9%, 19,143 convicts) followed by convicts of Dowry Deaths (15.8%, 3,935 convicts) as on 31st December, 2023.
- d. Among the convicts under SLL crimes (18,479) lodged in various jails in the country, the highest number of inmates were convicted under Liquor & Narcotics Drugs - Related Acts (50.4%, 9,312 convicts) followed by convicts of Arms/Explosive - Related Acts (8.1%, 1,491 convicts) and convicts under Foreigner & Passport - Related Acts (5.9%, 1,088 convicts) as on 31st December, 2023.
- e. Among 1,43,558 convicts who were admitted during the year 2023, the number of habitual offenders were 2,013 (1.4% of convicts admitted).

2. Undertrials

- a. Among the undertrial prisoners under IPC crimes (2,92,279) lodged in various jails in the country, around 64.6% (1,88,831 inmates) of undertrial prisoners have committed Offences affecting Human Body followed by prisoners of Offences against Property (27.5%, 80,479 inmates) as on 31st December, 2023.
- b. Among the undertrial prisoners of Offences against Women, the highest number of inmates were undertrial for Rape (68.6%, 44,078 inmates) followed by undertrials for Dowry Death (17.4%, 11,168 inmates) at the end of 2023.
- c. Among the undertrial prisoners under SLL crimes (97,567) lodged in various jails in the country, the highest number of inmates were undertrial under Liquor & Narcotics Drugs - Related Acts (66.4%, 64,762 inmates) followed by undertrial inmates under Arms/Explosive - Related Acts (13.8%, 13,469 inmates) and undertrial inmates under Crime Against SC/ST – Related Acts (4.0%, 3,921 inmates) at the end of 2023.

Prisoners – Sentences & Incarceration

1. Convicts

- a. A total of 545 prisoners, who had been sentenced for Capital Punishment, were lodged in various jails of the country as on 31st December, 2023. Out of these 545 prisoners, 145 prisoners were sentenced for capital punishment during the year 2023.
- b. Among the 1,35,536 convicted prisoners, the number of prisoners who were sentenced to Life Imprisonment were 75,040 accounting for 55.4% of total convicts. This is followed by 16.6% of total convicted prisoners (22,435) who were sentenced for 10 - 13⁺ years of imprisonments and 7.3% of total convicted prisoners (9,837) who were sentenced for 7- 9⁺ years of imprisonments.

2. Undertrials

- a. Among 3,89,910 undertrial prisoners, around 69.3% of prisoners were confined for periods up to 1 year (2,70,256 prisoners), as on 31st December, 2023. Out of this, most number of undertrial prisoners (1,26,757 prisoners) were confined for up to 3 months accounting for 46.9%. This is followed by 78,564 undertrial prisoners who were confined for 3-6 months and 64,935 undertrial prisoners who were confined for 6-12 months.
- b. However, there were also 54,655 undertrial prisoners (14.0% of total Undertrials) confined for 1 to 2 years followed by 31,601 undertrial prisoners (8.1% of total Undertrials) confined for 2 to 3 years and 23,006 undertrial prisoners (5.9% of total Undertrials) confined for 3 to 5 years as on 31st December, 2023.
- c. Also there were 10,392 undertrial prisoners (accounting for 2.7% of total undertrial prisoners) who were confined for more than 5 years.

Prisoners – Releases, Transfers and Movements

The release of convicts has increased by 16.3% (from 1,25,533 in 2022 to 1,45,939 in 2023) and the release of undertrials has decreased by 0.8% (from 15,48,143 in 2022 to 15,35,182 in 2023).

1. Convicts

- a. A total of 1,45,939 convicts were released (including 1,237 convicts getting transferred to other States/UTs) during the year 2023.
- b. Out of 1,45,939 convicts released, 44.5% of convicts (64,973) were released after completion of conviction period during 2023.
- c. A total of 12,623 convicts were released subsequent to the acquittal on appeal from Higher Courts.
- d. A total of 4,041 convicts were released before completion of sentence awarded.
- e. A total of 114 convicts were pardoned for their offence committed.

2. Undertrials

- a. A total of 15,35,182 undertrial prisoners were released during 2023, out of which 93.9% of undertrial prisoners (14,41,335) were released on bail. Percentage share of Undertrials Released on Bail was 95.0% in 2022.
- b. A total of 53,291 undertrial prisoners were released based on acquittal on first instance and 19,766 undertrial prisoners were released subsequent to the acquittal on appeal.
- c. No undertrial prisoners were extradited to foreign countries during 2023.
- d. A total 656 undertrial prisoners were released under Section 436A of CrPC during 2023.

3. Detenues

- a. A total of 9,045 detenues were released during 2023, out of which, 20.0% detenues (1,810) were released on completion of detention period and 71.1% detenues (6,428) were released before completion of detention period.

4. Movements

To Courts:

- a. A total of 37,12,923 times, inmates were taken to the Courts on legal proceedings. Among all the States/UTs, Bihar has reported the highest number of movements of inmates to courts (9,11,801) followed by West Bengal (4,10,694), Delhi (3,38,584) and Haryana (2,67,650) during 2023.

To Hospitals:

- a. A total of 5,18,647 times, inmates were taken to the Hospitals. Among all the States/UTs, Haryana has reported the highest number of movements of inmates for medical assistance (68,939) followed by West Bengal (56,507) and Chhattisgarh (42,412) during 2023.
- b. There were 9,095 prisoners, who were suffering from mental illness as on 31st December, 2023.

Deaths and illness in Prisons

Year	Total No. of Deaths in Prisons	No. of Natural Deaths	No. of Un-natural Deaths (incl. Suicide)
2021	2,116 ^{\$}	1,879	185
2022	1,995 ^{\$}	1,773	159
2023	1,972 ^{\$}	1,787	150

• As per data provided by States/UTs.

\$ Rajasthan has reported that causes of 52 deaths in 2021, 63 deaths in 2022 and 35 deaths in 2023 were not known.

1. Number of deaths in prisons has decreased from 1,995 in 2022 to 1,972 in 2023, having decreased by 1.2%.
2. Number of deaths due to natural causes has increased from 1,773 in 2022 to 1,787 in 2023, having increased by 0.8%.
3. Out of 1,787 Natural Deaths furnished by the States, 1,729 inmates have died due to illness and 58 inmates have died due to ageing.
4. Out of 1,729 deaths due to illness, 29.7% (514) inmates have died due to heart-diseases and 16.0% (276) inmates have died due to lung diseases.
5. Number of un-natural deaths in prisons has decreased by 5.7% from 159 in 2022 to 150 in 2023.
6. Among the 150 un-natural deaths of inmates, 96 inmates have committed suicide, 8 inmates were murdered by inmates, 12 inmates died in accidents and 1 inmates died due to assault by outside elements during 2023. For a total of 35 inmate deaths, cause of the death is yet to be known.

Jail Breaks, Escapees & Clashes/Group Clashes in Prisons

1. A total of 194 prisoners escaped during 2023 where 67 escapees (34.5%) had escaped from police custody and 127 escaped from judicial custody.
2. A total of 104 escapees were re-arrested during 2023.
3. There were 4 incidences of jail break occurred during 2023.
4. 98 instances of clashes/group clashes occurred during 2023.

Rehabilitation and Welfare of Prisons

1. A total of 2,245 convicted inmates were rehabilitated during 2023.
2. A total of 1,848 inmates were given financial assistance on their release during 2023.

3. A total of 1,93,852 inmates were provided legal aid during 2023.
4. The number of prisoners benefitted from Elementary Education, Adult Education, Higher Education and Computer Course were 56,383, 39,985, 14,207 and 7,133 respectively during 2023. Also 59,800 inmates were imparted various vocational trainings by the jail-authorities during 2023.
5. A total of 73,023 inmates had been given medical counselling and 62,645 inmates had been given legal counselling by NGOs during 2023.
6. The total value of goods produced by inmates during 2023 was ₹ 274.02 Crore.
7. There were 665 NGOs who were working exclusively for prison reforms and 210 NGOs who were working exclusively for welfare of women during the year 2023. However, some NGOs may be working in many States.
8. A total of 395 complaints were received by National Human Rights Commission (NHRC) during 2023. A total of 346 complaints (including previous year pending complaints) were disposed-off during 2023 with a disposal rate of 87.6%.
9. A total of 501 complaints were received by State Human Rights Commission (SHRC) during 2023. A total of 623 complaints (including previous year pending complaints) were disposed-off during 2023 with a disposal rate of 124.4%.

Prison Staff - Strength & Training

1. The sanctioned strength of jail-staff was 94,458 while the actual strength was 63,490 as on 31st December, 2023 due to vacancies not being filled up. Among the jail-staffs, the sanctioned strength of Officers (DG/Addl. DG/IG, DIG, AIG, Supdt. etc.), Jail-cadre Staff (Head Warder, Head Matron, Warder, etc.) and Correctional Staff (Probation Officer / Welfare Officer, Psychologist / Psychiatrist, etc.) were 7,892, 70,293 and 1,437 respectively, while the actual strengths were 5,586, 48,557 and 788 respectively.
2. The sanctioned strength of Medical Staff was 3,781 while the actual strength was 2,071 as on 31st December, 2023.
3. The actual strength of woman jail officers/staffs was 9,051 (including 305 medical officers/staff).

4. Out of the 63,490 jail staffs, 20.6% (13,105) staffs were trained under various Refresher/Specialised/Re-orientation courses during 2023.

Prison – Budget & Infrastructure

1. The total budget for the financial year 2023-24 for all prisons in the country was ₹ 10035.6 Crore. The actual expenditure was ₹ 8834.6 Crore which is 88.0% of total annual budget for FY 2023-24.
2. A total of ₹ 2669.88 Crore was spent on inmates during FY 2023-24 which is almost 30.2% of total annual expenditure of all prisons for FY 2023-24.
3. Almost 54.6% (₹ 1457.09 Crore) of total expenses on inmates were spent on Food followed by 4.3% (₹ 113.50 Crore) on Medical matters, 1.0% (₹ 26.77 Crore) on Clothing, 0.9% (₹ 23.90 Crore) on Welfare activities and 0.4% (₹ 9.51 Crore) on Vocational/Educational trainings.
4. Among all the States/UTs, out of total expenditure, Haryana (100.0%, ₹ 455.82 Crore) and Lakshadweep (100.0%, ₹ 0.03 Crore) has spent the highest share of expenditure on inmates followed by Andhra Pradesh (99.0%, ₹ 186.64 Crore) and DNH & Daman Diu (96.8%, ₹ 1.37 Crore) during the Financial Year 2023-24.
5. Among the 1,332 prisons, 266 prisons were renovated/expanded during 2023.
6. Among the 1,332 prisons, 1,156 prisons were having Video Conference facility as on 31st December 2023.
7. A total of 38,662 quarters were available against the actual staff strength of 63,490 as on 31st December, 2023, thus achieving satisfaction rate of 60.9%.

